

25STCV28055 25STCV28055

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 25STCV28055 Hearing Date: August 12, 2026 Dept: 406

AHMED MANSOUR,

Plaintiff,

v.

THERMO FISHER

SCIENTIFIC INC., et al.,

Defendants.

Case No.: 25STCV28055

Hearing Date: August 12, 2026

[TENTATIVE]

order RE:

plaintiff's motion to quash subpoena

BACKGROUND

On September 24, 2025, Plaintiff

Ahmed Mansour filed this action for employment discrimination against

Defendants Thermo Fisher Scientific Inc. and Greg Terterian.

On March 4, 2026, Plaintiff filed

the instant motion to quash a subpoena sent to his current employer, Howmet

Aerospace, Inc. Defendant Thermo Fisher filed an opposition on April 16, 2026.
Plaintiff filed a reply on April 22, 2026.

LEGAL STANDARD

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things ..., the court, upon motion reasonably made by [a party] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1, subd. (a), (b).) Good cause must be shown to compel a nonparty to produce documents. (See *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 224.)

DISCUSSION

The challenged subpoena seeks Plaintiff's employment records from Howmet, including: (1) pay records; (2) offer letter; (3) benefits information; (4) timekeeping records and work schedules; and (5) records of leave requests.

There is good cause for the information because Plaintiff alleges wrongful termination, which has placed his employment experience, motivation, earning capacity, and subsequent employment conduct at issue. Plaintiff's personnel records may reveal the reasons Plaintiff identified for leaving Defendant, as well as inconsistencies with his current claims that he was separated for discriminatory or retaliatory reasons. Moreover, Plaintiff's work performance, pay records, time records, and job duties are directly relevant to his claim for loss of income, in particular mitigation of damages. Thus, the information sought is relevant to the issues in litigation and reasonably calculated to lead to admissible evidence. (See Code Civ. Proc., § 2017.010.)

While personnel records can fall within the zone of privacy (*Board of Trustees v. Superior Court of Santa Clara County* (1981) 119 Cal.App.3d 516, 528-30), the need for disclosure outweighs the interest in privacy in this particular case (*Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 552). Plaintiff's speculation that the subpoena threatens his current employment at Howmet does not justify quashing relevant discovery. The subpoena does not seek character evidence, but in any case, admissibility is not the test for discovery. (See *Volkswagen of America,*

Inc. v. Superior Court (2006) 139 Cal.App.4th 1481, 1490.)

The fact that Plaintiff has offered to produce the documents does not preclude Defendant from obtaining the documents directly from Howmet. Howmet may have access to documents that Plaintiff does not. Defendant is entitled to seek complete and thorough information by resorting to multiple sources. "A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method." (Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal.App.4th 733, 739.)

CONCLUSION

Plaintiff's motion to quash subpoena is DENIED. Sanctions are denied as the parties acted with substantial justification.